

Assignment 4: First Amendment Principles in Section 230 of CDA and Reformation

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The First Amendment provides freedom of speech to comprehend the synergistic topics of U.S. mass media with the principles of defamation and libel, privacy, copyright, media content, and potentially, social media regulation in real-world situations. The First Amendment allows freedom of speech, freedom of religion, freedom of the press, freedom of the assembly, and the right to petition. However, due to the ambiguities, it has legal limitations that are not protected such as illegal or harmful activities (Volkh, 2024, September 27). Section 230 emphasizes balancing free expression with the need to address harmful content by shielding internet companies from certain legal liabilities related to content posted by their users (Communications Decency Act, 1996). This is crucial to alert citizens about current news, media, government abuses, and law corruption (Krutz, G. & Oklahoma State University, 2021). Since the complexity of the law is easily misunderstood, Congress should suggest reforms to allow cyberbullying liabilities against social media companies that can help determine future verdicts for cyberbullying or sexual assault victims (Kosseff, 2022). Evaluating Section 230's effectiveness in balancing free speech with the prevention of online harm requires a contextual understanding of the shield law's advantages and limitations. After understanding the context and carefully examining its application in cyberbullying and sexual assault cases it determines whether the current protections are sufficient or if modifications are necessary to safeguard users better while preserving fundamental freedoms of the First Amendment.

Moreover, Section 230 should not utilize the shield laws to protect platforms that allow defamation, libel, and invasion of privacy content promoting cyberbullying. As Kosseff (2022) mentions, Section 230 protects online companies to regulate and monitor user speech on media platforms. Platforms that promote these contents should be held liable as the First Amendment

does not allow violating federal law that is illegal or harmful content, which is not protected (Citron, 2023). According to the University of Maryland Global Campus (2021), spoken defamation is called slander, and a wronged plaintiff's remedy is a defamation action. A person's reckless disregard for the truth, or knowledge that something is not true yet publishing it anyway, is considered constitutional malice (University of Maryland Global Campus, 2021). Section 230 should not be used to protect companies liable for cyberbullying cases that involve defamation for cyberbullying or sexual assault victims. For instance, *Doe v. Myspace, Inc.* (2008) deals with sexual privacy issues and how Myspace attempted to utilize Section 230 to protect them from liability for cyber harassment and sexual abuse. The Supreme Court has held that sexual privacy is entitled to protection under the U.S. Constitution and section 652D of the privacy law states that there may be some intimate details of a person's life such as sexual relations which even the person is entitled to keep to themselves (Harder, 2017). This means that morbid and sensational prying into private lives for its own sake serves no legitimate public interest and has no protection. In the case of *Doe v. MySpace, Inc.* (2008), Doe, a minor female plaintiff, argued that a stranger sexually assaulted her after meeting the stranger on MySpace. Doe claimed that MySpace had failed to take adequate measures to protect its users from such harm, despite receiving numerous reports of sexual predators and harassment on the platform. MySpace argued that it was protected from liability under Section 230, which generally immunizes online service providers from liability for content created by third parties. Doe countered that Section 230 did not shield MySpace from liability because the platform had a duty to supervise its users and take reasonable steps to prevent harm, particularly when it had actual knowledge of the risks. The court favored neither Doe nor MySpace and held that MySpace could be liable for negligent supervision if it had actual knowledge of the risk of harm to its users and failed to take

reasonable steps to prevent it. If MySpace had received reports of predatory behavior from this individual or had other information indicating that he was a potential threat, it could be liable for failing to take action (*Doe v. MySpace, Inc.*, 2008). Section 230 allowed MySpace to promote cyberbullying and sexual assault that Doe experienced with the shield law. MySpace's algorithms had harmful content and sexual assault that are not protected under the First Amendment, which is an issue as the court based the conclusion on sufficient evidence. The court's rulings imply that if Doe had evidence of predatory behavior, MySpace would be liable for cyberbullying and sexual assault. However, even if the evidence was not sufficient, Doe experienced the sexual assault that could have been prevented if MySpace had been accountable for the algorithms that promoted harmful content or predatory behavior. Allowing the reformation of Section 230's shield law would allow justice for many other cyberbullying and sexual assault victims. It is essential to understand this to comprehend privacy law as First Amendment limitations are considered invalid in Section 230 like when it started from John Peter Zenger's trial in 1735 (*The Crown v. John Peter Zenger*, n.d.). So, the case of *Doe v. MySpace, Inc.* (2008), underscores a better interpretation of Section 230 that balances the principles of free speech with the imperative to protect users from harmful content of cyberbullying and sexual assault. The advantages of reforming Section 230 outweigh the drawbacks of holding online platforms accountable for the algorithms and ensuring that victims have justice with a safer online environment for all.

In addition, Section 230's flawed shields law deals with the invasion of privacy issues, cyber harassment, and copyright law cases. In *Doe v. MySpace, Inc.* (2008), the shield law would favor MySpace and prevent it from negligent liability if it had not known actual knowledge of the risk of harm to its users and took steps to prevent cyberbullying. According to Mediavilla

(2022), Section 230 benefits internet providers who wish to highlight controversial or politicized speech with a legal platform favorable to free expression. It balances preventing liabilities from online companies while granting no liability from third-party content of users' speech on the platform. However, this gives internet platforms the power to allow harmful and illegal content (Mediavilla, 2022). Citron (2023) mentions Section 230's drawbacks emphasizing that if Section 230's legal shield is removed, platforms would have liabilities against illegal hosting content of privacy violations and cyber harassment. In other words, platforms would not be liable for user-generated content. However, if online platforms lose their legal shield, they might be less strict about moderating content to avoid legal risks. The downside is that they may censor or remove content if Section 230's legal shield is gone (Citron, 2023). In *Doe v. MySpace, Inc.* (2008), Doe was cyber harassed and breached sexual privacy because of the stranger who sexually assaulted her after meeting with him on MySpace. Doe's parents sued MySpace, alleging that the platform had a duty to protect minors from such harm. Limiting the shield law would have drawbacks of censoring the amount of First Amendment rights in the platforms but would protect users from becoming cyberbullying or sexual assault victims. The issue is that Section 230 should not protect companies that have allowed harmful content and promote cyberbullying toward sexual assault victims. This issue should be stopped as in another case, Section 230 protects Snapchat from liability for cyberbullying in *Grossman v. Rockaway Township* (2019). According to *Grossman v. Rockaway Township* (2019), a teenager used Snapchat to send harassing and threatening messages to another student. The victim's family sued Snapchat, arguing that the platform had a duty to prevent such harmful content. Despite the strong argument, the Court found that Section 230 protected Snapchat from liability, as the platform was not the author or speaker of the content. Platforms' algorithms can amplify harmful content, contributing to a

toxic online environment. This is a flaw of Section 230's shield law as it does not make platforms accountable for the harmful content through the sites and algorithms that promote them. The benefits outweigh the negative consequences of the shield law and in both cases, these platforms should be held liable for their algorithms rather than be protected by Section 230's shield law. Meanwhile, in *Viacom Int'l, Inc. v. YouTube, Inc.* (2012), Section 230 deals with copyright law infringement regarding the media content published on YouTube. The plaintiff, Viacom argued that YouTube had engaged in contributory and vicarious copyright infringement by allowing users to upload and share copyrighted content without proper authorization. According to Fromer & Sprigman (2021), Copyright laws are federal laws under Article I, Section, 8, Clause 8 of the U.S. Constitution and it states, "To Promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors, the exclusive Right to their respective Writings and Discoveries." This means authors have the right to secure their work and the creator has ownership and the intellectual property right states that a patent is an exclusive right granted for an invention. (Fromer & Sprigman, 2021). According to *Viacom Int'l, Inc. v. Youtube, Inc.* (2012), the court concluded that YouTube was protected by Section 230 and that YouTube did not have actual knowledge of infringing activity, where YouTube is not liable for third-party content. Nevertheless, this is a flaw of the shield law because if the platform actively contributes to or facilitates infringement, then the company should be liable for illegal content. Copyright laws can involve cyberbullying in some cases such as in *Grossman v. Rockaway Township* (2019), Snapchat allowed a teenager to send harmful cyber harassing messages to another student. If the cyber harassing messages were published without consent publicly, Snapchat should be accountable for the harmful content posted even though the company did not know of the infringing activities. So, both cases demonstrate the issues of

addressing copyright infringement and cyberbullying as companies should be held accountable for the harmful content despite not knowing the infringing activities.

Furthermore, as Reporters' Privilege Compendium of RCFP (n.d.) mentions, shield laws and the First Amendment reporter's privilege allow journalists to publish their ideas firmly with a commitment to source confidentiality (Reporters' Privilege Compendium of RCFP, n.d.). In the case of *Doe v. MySpace, Inc.* (2008), journalists and judges must report the correct information to the public about Section 230's shield laws and flaws. If the government decides to reveal the sources, it will discourage other whistleblowers and victims from reporting it, which is a flaw in Section 230 (Martin, 2023). In this case, Doe is a victim of a sexual assault from a stranger from MySpace and this law protects journalists or public officials such as judges from reporting this event confidentially while protecting her by not revealing the name and putting Doe instead. Another issue is that Section 230 should not allow companies to hide behind the shield law from surveillance or favoring large corporations. The concern surrounding privacy and surveillance is data collection that is analyzed and used (Nissenbaum, 2011). Since platforms can track and profile users online through cookies, they are also responsible for allowing harmful experiences for cyberbullying or sexual assault victims (Bennet, 2014; Faverio, 2021; Raul, 2014). Platforms should be accountable for the algorithms that promote harmful content despite not knowing that harmful content exists in the algorithm. Meanwhile, *The Citizens United v. Federal Election Commission* case discusses rights and how the First Amendment plays a role in finance law (LaRocca, 2020). The U.S. Supreme Court concluded that corporations and unions have the same First Amendment rights as individuals for political spending and allowed independent bribery by corporations and unions in elections. This means that the restrictions on independent political expenditures violated the First Amendment where the wealthy are likely to be listened

to. This is unfair to the consumers as the victims in the previous cases had breaches of the First Amendment through these companies that should be liable for cyberbullying. Companies should not be protected by the shield law that favors large companies' voices. This would hinder the voices of cyberbullying or sexual assault victims by not allowing journalists or judges to conclude these cyberbullying cases earnestly. The benefits of reforming Section 230 outweigh the drawbacks so there should be a balance to ensure that media companies are responsible for certain content that infringes on civil liberties.

In conclusion, Section 230 of the Communications Decency Act (CDA) should balance the powers of free speech and the companies' shield laws for immunity against liabilities. It should prohibit companies from utilizing the shield law to prevent liabilities from cyberbullying. Governments must balance free speech with protecting citizens from harmful material with Section 230 of the CDA (Pagano, 2018). When some corporations monitor the internet, they exert influence over public opinion and limit harmful content with Section 230 of CDA (LaRocca, 2020). This allows the internet to keep existing power structures hindering people's voices. The Founding Fathers ensured that the Constitution provided the rights and welfare of its citizens and the three branches of the government. (The Three Branches of Government, 2017). Section 230 of the CDA must follow this path by reforming it to prohibit companies from using the shield law and being protected from cyberbullying or sexual assault. By holding platforms more accountable, these reforms could help to protect users from harmful content and promote responsible online behavior. Reforms focusing on content moderation and transparency could help to create a safer online environment for users. Therefore, Section 230 of CDA should not protect companies from cyberbullying but balance First Amendment rights and shield laws through reformation.

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